

MEMORANDUM

To: Newcastle Planning Board (*working draft for Ben Frey*)
From: Ben Frey (*Article 3 / Core Zoning Code amendment drafter*)
Date: June 9, 2026
Re: Two-page summary — reconciling our form-based **Article 3 (Thoroughfares)** with the Fall-2026 redline’s engineering-style **“Article X: Thoroughfare Standards”**
Status: **Discussion draft.** Condensed from the full reconciliation memo; no code language is changed here.

1. WHAT THIS IS

Two efforts are independently writing thoroughfare standards for the same amendment cycle: **our form-based Article 3 (“Thoroughfares”)** — Types **S1–S5** (Streets) and **R1–R5** (Roads), calibrated to the zoning **Districts**, with a binding classification of every existing segment — and the **Fall-2026 redline’s “Article X,”** a conventional **engineering** road code (13 function-named types in two design tables) plus new definitions. Both **replace the repealed RDEO**, and both copy its culvert/ditch language nearly verbatim — so their engineering cores already overlap.

Bottom line. Our form-based article is the better structural **fit** for a form-based code and is, in most respects, a **superset**; Article X contributes a short list of engineering specifics worth harvesting. The move is **merge, not choose** — and the two **cannot both reach Town Meeting**, because they define the same core terms in contradictory ways.

2. AT A GLANCE

	Our Article 3	Their “Article X”
Lineage	SmartCode / form-based (transect)	Subdivision-road engineering (RDEO modernized)
Organizing axis	Zoning District (place)	Function & size (and use restriction)
Types	10, place-named (Main/Village/Neighborhood/Lane/Alley; Connector/Rural/Rural-Lane/Hwy-Commercial/Rural-Hwy)	13, function-named (Track/Small/Advisory/Local/Rural/Industrial Rd; Advisory/Local/One-Way/Connector/Industrial St + Alley)
Applies to	All thoroughfares — existing (binding map) and new	New / reconstructed only
Integration	Wired into Districts, frontages, setbacks, Comp Plan	Stand-alone; placeholder number; driveways punted out
Maturity	Complete, rendered, 215 segments classified	Draft; blank table cells; “Main St” deleted

3. THE CORE PROBLEM — CONFLICTING DEFINITIONS

Both start from the **same original CZC terms** and diverge incompatibly. Adopting both would put two contradictory definitions of the same words in one code:

Term	Ours	Theirs
Thoroughfare	umbrella = Street + Road + Driveway	"a type of right-of-way " (excludes drive-ways)
Street	the S1-S5 family (urban)	"a category for in-town settings"
Road	(still the obsolete physical def)	"a category for rural settings"
Driveway	access from a road to a lot	"... not within a right-of-way "
Right-of-Way	"total width of land reserved..."	"a type of easement " + Public/Private — cleaner

Plus **name collisions**: both use "Connector" (ours = rural *Road*; theirs = urban *Street*), "Alley," and "Main St."

4. MATCH · DIFFER · UNIQUE · MISSING

- **Genuinely match**: Street = urban / Road = rural; **typed** systems with per-type tables; **narrow calming lanes** (8–12 ft); an **Alley** at ~20 ft and the historic **rod ROW**; **engineer-stamped plans + MaineDOT specs**; **near-identical culvert/ditch** language (shared RDEO source); both replace the RDEO and use "Thoroughfare."
- **Fundamentally differ**: form/transect vs. engineering/function · District-place vs. size/use-class · all thoroughfares incl. existing (via a map) vs. new construction only · wider public-realm ROW vs. leaner utilitarian ROW · use governed by **District** vs. by **Type**.
- **Only ours**: the §5 **binding classification + GIS Type Map**; District calibration; **Ownership Categories**; **R4/R5 + §12 MaineDOT** (the Route 1 corridor); cross-section **illustrations**; design speed / grade / block length; **driveways**; Comp-Plan + frontage integration.
- **Only theirs (worth harvesting)**: per-type **use/volume/vehicle** caps; **paving material & underdrainage by type**; dead-end **hammerhead** turnaround; **road-siting spacing**; one-way / advisory geometries; the **ROW-as-easement** definition.

5. FIT ASSESSMENT & RECOMMENDATION

Ours is the better fit — clearly — because the CZC is itself a form-based code. Every other part of it is District/transect-driven (District pages, building types, frontages, setbacks, shopfronts, use-by-District tables); our article speaks that language and plugs straight in. Article X, however competent as an engineering standard, is **structurally foreign** to a form-based code — organized by function and use-restriction, with no transect, no map, and no link to frontages or setbacks.

Recommendation — merge: keep our Article 3 as the framework; **harvest** Article X's engineering specifics (turnarounds, road spacing, paving/underdrainage, the precise culvert placement) into our §6/§10/§11; **borrow** their cleaner right-of-way definition; **fix** our own stale "Road" definition; **de-collide** the type names. The rest of their Fall-2026 package (the permitting/review overhaul, Project Size Standards, Article 2 changes) is **largely independent** and can proceed on its own track — only the thoroughfare piece collides.

The one hard rule. Do not let both reach Town Meeting. Two contradictory definition sets, two Type systems, and two Article-3 numberings would make the adopted code internally inconsistent and litigation-prone. They must be merged into one article **before** warrant.

Full detail — typology mapping, dimensional tables, and the complete coverage matrix — is in the companion reconciliation memo. This summary is for discussion; it is not legal advice.